

64 Footwear, gaiters and the like; parts of such articles

Notes

1. This Chapter does not cover:
 - a) disposable foot or shoe coverings of flimsy material (for example, paper, sheeting of plastics) without applied soles. These products are classified according to their constituent material;
 - b) footwear of textile material, without an outer sole glued, sewn or otherwise affixed or applied to the upper (Section XI);
 - c) worn footwear of heading 6309;
 - d) articles of asbestos (heading 6812);
 - e) orthopaedic footwear or other orthopaedic appliances, or parts thereof (heading 9021); or
 - f) toy footwear or skating boots with ice or roller skates attached; shin-guards or similar protective sportswear (Chapter 95).
2. For the purposes of heading 6406, the term «parts» does not include pegs, protectors, eyelets, hooks, buckles, ornaments, braid, laces, pompons or other trimmings (which are to be classified in their appropriate headings) or buttons or other goods of heading 9606
3. For the purposes of this Chapter:
 - a) the terms «rubber» and «plastics» include woven fabrics or other textile products with an external layer of rubber or plastics being visible to the naked eye; for the purpose of this provision, no account should be taken of any resulting change of colour; and
 - b) the term «leather» refers to the goods of headings 4107 and 4112 to 4114.
4. Subject to Note 3 to this Chapter:
 - a) the material of the upper shall be taken to be the constituent material having the greatest external surface area, no account being taken of accessories or reinforcements such as ankle patches, edging, ornamentation, buckles, tabs, eyelet stays or similar attachments;
 - b) the constituent material of the outer sole shall be taken to be the material having the greatest surface area in contact with the ground, no account being taken of accessories or reinforcements such as spikes, bars, nails, protectors or similar attachments.

Subheading note

1. For the purposes of subheadings 6402.11, 6402.19, 6403.12, 6403.19 and 6404.11, the expression «sports footwear» applies only to:
 - a) footwear which is designed for a sporting activity and has, or has provision for, the attachment of, spikes, sprigs, stops, clips, bars or the like;
 - b) skating boots, ski-boots and cross-country ski footwear, snowboard boots, wrestling boots, boxing boots and cycling shoes.

Tariff Heading	Description of goods
6401.	Waterproof footwear with outer soles and uppers of rubber or of plastics, the uppers of which are neither fixed to the sole nor assembled by stitching, riveting, nailing, screwing, plugging or similar processes:
1000	- footwear incorporating a protective metal toe-cap
	- other footwear:
9200	-- covering the ankle but not covering the knee
9900	-- other
6402.	Other footwear with outer soles and uppers of rubber or plastics:
	- sports footwear:
1200	-- ski-boots, cross-country ski footwear and snowboard boots
1900	-- other
2000	- footwear with upper straps or thongs assembled to the sole by means of plugs
	- other footwear:
9100	-- covering the ankle
9900	-- other
6403.	Footwear with outer soles of rubber, plastics, leather or composition leather and uppers of leather:
	- sports footwear:
1200	-- ski-boots, cross-country ski footwear and snowboard boots
1900	-- other
2000	- footwear with outer soles of leather, and uppers which consist of leather straps across the instep and around the big toe
4000	- other footwear, incorporating a protective metal toe-cap
	- other footwear with outer soles of leather:
5100	-- covering the ankle
	-- other:
5910	--- children's footwear up to size 35
	--- other footwear, weighing per pair:
5991	---- more than 1200 g
5992	---- more than 600 g but not more than 1200 g
5993	---- not more than 600 g
	- other footwear:
9100	-- covering the ankle
	-- other:
9910	--- children's footwear up to size 35
	--- other footwear, weighing per pair:
9991	---- more than 1200 g
9992	---- more than 600 g but not more than 1200 g
9993	---- not more than 600 g
6404.	Footwear with outer soles of rubber, plastics, leather or composition leather and uppers of textile materials:
	- footwear with outer soles of rubber or plastics:
1100	-- sports footwear; tennis shoes, basketball shoes, gym shoes, training shoes and the like
1900	-- other
2000	- footwear with outer soles of leather or composition leather
6405.	Other footwear:
1000	- with uppers of leather or composition leather
2000	- with uppers of textile materials
	- other:
9010	-- with outer soles of leather, composition leather, rubber or plastics
9090	-- other
6406.	Parts of footwear (including uppers whether or not attached to soles other than outer soles); removable in-soles, heel cushions and similar articles; gaiters, leggings and similar articles, and parts thereof:
1000	- uppers and parts thereof, other than stiffeners
2000	- outer soles and heels, of rubber or plastics

Tariff Heading	Description of goods
(6406.) 9010 9020 9090	Parts of footwear (including uppers whether or not attached to soles other than outer soles); removable in-soles, heel cushions and similar articles; gaiters, leggings and similar articles, and parts thereof (Fortsetzung): - other: -- removable in-soles -- gaiters, leggings and similar articles, and parts thereof -- other